



CHAPTER xxiv

An Act to empower the Milford Docks Company to construct new docks and other works to authorise the raising of additional capital by the Company to confer further powers on the Company and for other purposes.
[27th July 1955.]

WHEREAS the Milford Docks Company (hereinafter referred to as "the Company") were incorporated by the Milford Docks Act 1874 and have constructed docks and works at Milford in the county of Pembroke (hereinafter referred to as "the Milford Docks"):

And whereas the present facilities at the Milford Docks are insufficient to meet the anticipated requirements of shipping and particularly for the repair of ships and it would be of great public and local advantage if the Company were empowered to construct a second dry dock two tidal basins and other works connected therewith:

And whereas as a result of the construction of the said docks and other works it will be necessary to extend the main sewer of the Milford Haven Urban District Council:

And whereas it is expedient to empower the Company to construct the dry dock and other works and the extension of the main sewer as in this Act provided:

And whereas it is expedient that the Company should be authorised to acquire lands for the purpose of the said dry dock and other works and to reclaim part of the bed and fore-shore of Milford Haven as in this Act provided:

And whereas it is expedient to authorise the Company to raise additional share and loan capital for the purpose of financing the construction of the said dry dock and other works and for the future development of the Milford Docks:

And whereas it is expedient that the other powers contained in this Act should be conferred on the Company:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the works by this Act authorised such plans showing also the lands which may be acquired or used compulsorily under the powers of this Act for or in connection with the dry dock and other works and the other purposes mentioned in this Act together with a book of reference to the said plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same have been deposited with the clerk of the county council of the administrative county of Pembroke and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and
collective
titles.

1.—(1) This Act may be cited as the Milford Docks Act 1955.

(2) The Milford Docks Acts 1874 to 1953 and this Act may be cited together as the Milford Docks Acts 1874 to 1955.

Incorporation
of Acts.

2.—(1) The following enactments so far as the same are applicable to the purposes and are not inconsistent with the provisions of the Milford Docks Acts 1874 to 1955 are hereby incorporated with this Act (namely):—

(a) The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital):

Provided that—

(i) section 11 of the said Act of 1845 shall have effect as if the words “Except as otherwise provided by the conditions of issue thereof” were inserted at the beginning of that section;

(ii) section 15 of the said Act of 1845 shall have effect as if for the words “on demand” there were substituted the words “within two months after delivery thereof”;

- (b) The Companies Clauses Act 1863 (except sections 17 to 21 and the provisions thereof which limit the rate of dividend on preference capital and Part IV thereof):

Provided that—

(i) section 14 of the said Act of 1863 shall have effect as if the words “but if in any year” to the end of the section were omitted; and

(ii) section 22 of the said Act of 1863 shall have effect as if the words “and to the same amount as” were omitted therefrom; and

(iii) section 25 of the said Act of 1863 shall have effect as if the words “or the sum of ten thousand pounds whichever of the two last mentioned sums is the smaller sum” were omitted therefrom;

(iv) section 31 of the said Act of 1863 shall have effect as if after the words “other than” there were inserted the words “in the case of holders of perpetual debenture stock”;

- (c) The Lands Clauses Acts except section 92 of the Lands Clauses Consolidation Act 1845 and section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860:

Provided that the Company being a railway company within the meaning of the Railway Companies Act 1867 section 36 of that Act shall apply with reference to section 85 of the Lands Clauses Consolidation Act 1845;

- (d) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof:

Provided that for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 the works authorised by this Act shall be deemed to be the railway and the centre lines on those works as shown on the deposited plans shall be deemed to be the centre of the railway;

- (e) The provisions of the Harbours Docks and Piers Clauses Act 1847 (except sections 6 to 13 16 to 19 and 84 to 87):

Provided that—

(i) in the application of the said Act of 1847 to this Act the said Act of 1847 shall have effect as if the meaning assigned to the word “vessel” in section 4 (Interpretation) of the Act

of 1953 were substituted for the meaning assigned to that word by section 3 of the said Act of 1847 ;

(ii) nothing in the said Act of 1847 shall require or authorise the dock master (as defined in section 4 (Interpretation) of the Act of 1953) to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever to the structure or equipment of a seaplane.

(2) In the construction of the enactments so incorporated with this Act the expression "special Act" shall be read as a reference to this Act and the expression "company" shall mean the Company.

Interpretation.

3.—(1) In this Act the following words and expressions have the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

"the Act of 1874" means the Milford Docks Act 1874 ;

"the Act of 1953" means the Milford Docks Act 1953 ;

"associated company" means any other company in which the Company have invested in pursuance of the powers conferred by section 35 (Power to invest in other companies) of the Act of 1953 ;

"the Company" means the Milford Docks Company ;

"the council" means the urban district council of Milford Haven ;

"the directors" means the directors for the time being of the Company ;

"the docks" means the Milford Docks as for the time being constructed by the Company and the land buildings works plant property and conveniences connected therewith ;

"enactment" means any provision of a public general Act of a local private or personal Act of a Provisional Order confirmed by an Act or of any regulation or order made under an Act ;

"the existing sewer" has the meaning assigned to that expression by subsection (2) of section 17 (For protection of the council) of this Act ;

"the highway authority" means in the case of a highway maintainable at the public expense the authority in whom that highway is vested ;

"the Minister" means the Minister of Transport and Civil Aviation ;

"the new works" means the works authorised by this Act and includes those works as extended enlarged altered

replaced or relaid under section 4 (Power to make works) of this Act and "new work" shall be construed accordingly;

"share" means share in the share capital of the Company and includes stock except where a distinction between stock and shares is expressed or implied and "share capital" and "shareholder" shall be construed accordingly;

"telegraphic line" has the same meaning as in the Telegraph Act 1878;

"the tribunal" means the arbitrator or other person to whom any question of disputed purchase money or compensation under this Act is referred;

"the undertaking" means the undertaking of the Company as for the time being existing including the docks.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

4.—(1) Subject to the provisions of this Act the Company may make and maintain in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the works hereinafter described (that is to say):—

Work No. 1. A dry dock comprising an area of twelve thousand square yards or thereabouts:

Work No. 2. A sea wall or quay commencing at a point one hundred and thirty feet or thereabouts north of the eastern corner of the existing jetty thence to a point three hundred feet or thereabouts measured in a south-westerly direction from the point of commencement thence to a point one hundred and twenty feet or thereabouts seaward thence continuing in its original direction and terminating at a point six hundred feet or thereabouts from such last-mentioned point:

Work No. 3. A quay commencing at a point ninety feet or thereabouts north-west of the eastern corner of the existing jetty and terminating at a point one thousand feet or thereabouts seaward from the point of commencement:

Work No. 4. A pier or jetty partly of solid and partly of open construction commencing at a point on the high-water mark of ordinary spring tides four hundred and fifty feet or thereabouts west of the existing jetty

and terminating at a point two thousand and fifty feet or thereabouts seaward from the point of commencement:

Work No. 5. A pier or jetty between the said Work No. 3 and the said Work No. 4 commencing by a junction with the said Work No. 2 and terminating at a point nine hundred and fifty feet or thereabouts seaward from the point of commencement:

Work No. 6. A sewer being an extension of the existing main outfall sewer of the council commencing by a junction with the aforesaid existing sewer at its termination and terminating at a distance of one thousand one hundred feet or thereabouts seaward from the point of commencement.

(2) The Company may within the limits of the docks (as defined in the Act of 1953 as amended by this Act) extend enlarge alter replace or relay the said works or any of them (other than Work No. 6).

(3) The Company may by means of the new works enclose and reclaim from the foreshore and bed of the sea and may hold and use as part of the undertaking so much of the foreshore and bed of the sea as is situate within the limits of deviation and is required for or in connection with those works.

Subsidiary
works.

5.—(1) Subject to the provisions of this Act the Company for the purposes of or in connection with the works authorised by section 4 (Power to make works) of this Act may in addition to such works—

(a) construct or place and maintain all such cuts channels locks dock entrances sea walls gates weirs dams basins reservoirs ponds trenches pounds dry docks lay-byes sluices culverts syphons by-passes arches bridges (fixed or opening) ferries sewers drains mains pipes cables tanks embankments towing-paths banks walls jetties landing places dolphins moorings buoys beacons lights signals groynes quays wharves warehouses sheds buildings engines pumps machinery lifts cranes drops winches capstans gantries conveyors staithes tips railways tramways junctions sidings turntables roads approaches works and appliances as may be necessary or convenient for or in connection with or subsidiary to the said authorised works ;

(b) temporarily or permanently use strengthen widen improve alter or otherwise interfere with drains sewers (other than the existing sewer) telegraphic telephonic electric gas water and other pipes lines wires works and apparatus (all of which are hereinafter in this

section referred to as "apparatus") and highways public and private roads paths and streams providing where possible a proper substitute before interrupting the passage of sewage electricity gas or water in or through any apparatus or any such stream or the traffic on any such highway road or path ;

(c) raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and may remove any other obstruction.

(2) Any paving metalling or materials in on or under any highway public or private road or path altered or otherwise interfered with by the Company under the powers of this section and any apparatus rendered unnecessary by the substitution of other apparatus therefor shall vest in the Company and the substituted apparatus shall be under the same jurisdiction care management and direction as the existing apparatus for which it may be so substituted.

(3) (a) In the exercise of the powers conferred by this section the Company shall cause as little detriment and inconvenience as the circumstances permit to any person and shall make reasonable compensation for any damage caused to any person by the exercise of such powers.

(b) Any question of disputed compensation payable under the foregoing provisions of this section shall be determined under and in accordance with the Lands Clauses Acts.

(4) (a) Not less than twenty-eight days before executing any works under paragraph (b) of subsection (1) of this section affecting any drains sewers (other than the existing sewer) or pipes belonging to or repairable by the local authority or any highway or public road or path the Company shall submit to the appropriate authority sufficient plans sections and particulars of the proposed works for their reasonable approval.

(b) The Company shall execute such works in accordance with such plans sections and particulars as may be submitted to and approved by the appropriate authority or if such approval be refused as may be settled by arbitration and all such works shall be executed to the satisfaction of the appropriate authority and the Company shall at all times afford to the representative of the appropriate authority access for the purpose of inspecting such works.

(c) The Company shall give reasonable notice to the appropriate authority of the time at which such works are intended to be executed and shall comply with such reasonable conditions as the appropriate authority may require for obviating or reducing interference with the traffic using the highway public road or path.

(d) Any dispute or difference which may arise between the appropriate authority and the Company under this subsection shall be settled by arbitration.

(e) In this subsection "the appropriate authority" means in relation to any drain or sewer or pipe the local authority to whom they belong or by whom they are repairable and in relation to any highway or public road the highway authority.

(5) Notwithstanding anything in this section contained the Company shall not—

(a) use any telegraphic line belonging to or used by the Postmaster-General ;

(b) alter any such line except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878.

(6) Any electrical works or apparatus constructed erected laid down maintained worked or used in pursuance of the powers conferred by this section shall be so constructed erected or laid down and so maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(7) Any telegraphic and telephonic apparatus used under the provisions of this section shall be so used as not to contravene the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

(8) In subsection (5) of this section the expression "alter" has the same meaning as in the Telegraph Act 1878.

Power to deviate.

6. In the construction of the works authorised by subsection (1) of section 4 (Power to make works) of this Act the Company may deviate laterally from the lines or situations thereof shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of those works shown on the deposited sections to any extent upwards or downwards.

Works Nos. 1 to 5 to form part of undertaking and Work No. 6 to vest in local authority.

7.—(1) The new works (other than Work No. 6 or so much thereof as may have been constructed in accordance with the provisions of section 17 (For protection of the council) of this Act) shall for all purposes form part of the undertaking.

(2) As from the date on which the said Work No. 6 or any part thereof as may have been constructed as aforesaid is completed such work or part (as the case may be) shall vest without payment in the council and shall for all purposes be deemed to have been constructed by them in pursuance of the powers conferred by section 15 of the Public Health Act 1936.

8. So much of the new works as are outside the area of the petty sessional division of Milford Haven in the county of Pembroke or the urban district of Milford Haven shall be deemed to be within the said area or the said urban district (as the case may be).

New works to be within the petty sessional division and the urban district of Milford Haven.

9.—(1) Subject to the provisions of this Act the Company may from time to time deepen dredge scour and improve the bed and foreshore of the sea and blast any rock within the limits of the docks (as defined in the Act of 1953 as amended by this Act) or any part or parts thereof and the channels and approaches thereto and any chalk gravel rock or other materials taken up or collected by means of such deepening dredging scouring or blasting shall be the property of the Company and they may use sell or otherwise dispose of or remove or deposit the same as they think fit:

Power to dredge.

Provided that no such materials shall be laid down or deposited in any place below high-water mark of ordinary spring tides other than within the said limits of deviation except in such a position and under such restrictions and regulations as may be fixed by the Minister.

(2) The powers of the Company under this section shall be exercisable subject to the provisions of section 47 (Crown rights) of this Act and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands on behalf of Her Majesty may be given subject to such restrictions and conditions including the payment by the Company to the Commissioners of Crown Lands of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Company under this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands.

(3) (a) In the exercise of the powers conferred by this section the Company shall not interfere with damage or injuriously affect any submarine cable placed or maintained by the Postmaster-General in or across the bed or foreshore of the sea within the limits of the docks or the channels or approaches thereto.

(b) Before commencing to deepen dredge scour or improve the bed or foreshore of the sea or blast any rock under the powers of this section within a distance of one hundred and fifty yards of any such submarine cable in any case where blasting operations are involved or in any other case within a distance of fifty yards of any such cable the Company shall give in writing to the Postmaster-General as long notice as possible and in any case not less than twenty-eight days' notice of their intention so to do.

(c) Any chalk gravel rock sand mud shingle or other material dredged up or removed shall not be laid down or deposited in such a place or manner as to cover any such submarine cable or in any way obstruct or impede any work of or connected with the inspection or repair of such a cable.

Power to stop
up road.

10.—(1) Subject to the provisions of subsection (11) of section 17 (For protection of the council) of this Act the Company may stop up and discontinue so much of the road in the urban district of Milford Haven known as Point Street leading from the junction of Bridge Street and Hill Street to Hakin Point as lies between the points marked “ A ” and “ B ” on the deposited plans and thereupon all public rights of way over the portion of the road and of the footpath so stopped up shall be extinguished.

(2) Upon the stopping up of the said portion the site of the road shall vest by virtue of this Act in the Company.

(3) Where any part of Point Street is stopped up in pursuance of the power conferred by this section the following provisions shall unless otherwise agreed in writing between the Company and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such part of Point Street at the time of such stopping up:—

(a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of such part of Point Street so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (4) of this section unless before the expiration of that period the Postmaster-General has given notice to the Company of his intention to remove the line or that part thereof as the case may be ;

(b) The Postmaster-General may by notice to the Company in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it ;

(c) The Postmaster-General shall be entitled to recover from the Company the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require ;

(d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Company and the provisions of the Telegraph Acts 1863 to 1954 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(4) As soon as any part of Point Street has been stopped up the Company shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (3) of this section shall commence to run from the date on which such notice is sent.

11.—(1) The Company during and for the purpose of the execution of the new works may temporarily stop up and divert and interfere with any road or footpath and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any land house or building abutting on the road or footpath from passing along and using the same. Temporary stoppage of roads and footpaths.

(2) The Company shall provide reasonable access for foot-passengers bona fide going to or from any such land house or building.

(3) The Company shall not exercise the powers of this section without the consent of the highway authority but such consent shall not be unreasonably withheld and any question whether such consent is unreasonably withheld shall be determined by the Minister.

12. Subject to the provisions of this Act if the works authorised by subsection (1) of section 4 (Power to make works) of this Act are not completed within ten years from the first day of October one thousand nine hundred and fifty-five then on the expiration of that period the powers by this Act granted to the Company for making and completing the said works or otherwise in relation thereto shall cease except as to so much thereof as is then completed: Period for completion of works.

Provided that nothing in this section shall prejudice or affect the powers of the Company to maintain use extend enlarge alter replace or relay the new works at any time and from time to time as occasion may require.

13.—(1) Subject to the provisions of this Act any new work shall be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides only in accordance with plans and sections approved by the Minister and subject to such conditions and restrictions as the Minister may prescribe before such work is begun. Works below high-water mark to be subject to approval of Minister.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Minister may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Lights on
works during
construction.

14.—(1) The Company shall at or near such part of the new works as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Minister shall from time to time require or approve.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Abatement
of work
abandoned
or decayed.

15.—(1) Where any new work situate wholly or partially on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Minister may by notice in writing either require the Company at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister may think proper.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Company they have failed to comply with such notice the Minister may execute the works

required to be done by the notice at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

16. If at any time the Minister deems it expedient to order a survey and examination of any new work which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Survey of
works by
Minister.

17. For the protection of the council the following provisions shall unless otherwise agreed in writing between the Company and the council apply and have effect:—

For protection
of the
council.

(1) In this section unless the context or subject otherwise requires—

“ the dock works ” means Works Nos. 1 2 3 4 and 5 authorised by this Act ;

“ existing sewer ” means the existing main sewer vested in the council and situate within the limits of the docks and includes the manholes and covers over the sewer the penstock chamber situate near Hakin Point and the storage tanks ;

“ the first sewer extension ” means so much of Work No. 6 authorised by this Act as is constructed in accordance with the provisions of subsection (3) of this section ;

“ plans ” includes sections and specifications ;

“ protective works ” means such of the following works in connection with the existing sewer as may be reasonably required by the council in anticipation of the effect of the carrying out by the Company of the new works that is to say:—

the diversion raising sinking or alteration of the position of the existing sewer the support of that sewer the substitution of temporary works the raising of manholes the construction of such works as may be necessary to prevent the transmission to the sewer of any load which can reasonably be expected to be in excess of the load which the

existing sewer as constructed immediately before the passing of this Act can safely bear over any section of the existing sewer over which railway lines permanent buildings or plant or apparatus are to be constructed and the execution of all such other works to protect the existing sewer as may be reasonably required as a result of the carrying out of the new works ;

“ storage tanks ” means the two storage tanks proposed to be constructed as part of the existing sewer immediately adjoining the said penstock chamber :

- (2) Until the first sewer extension has been completed no part of the dock works shall be constructed so that so far as can be reasonably foreseen at the time of construction such part will adversely affect the discharge out to sea of sewage from the existing sewer and subject as aforesaid no power conferred on the Company by this Act shall be exercised so as adversely to affect the discharge of sewage into the sea through the existing sewer until the first sewer extension shall have been completed as provided in the next succeeding subsection :
- (3) Work No. 6 shall be constructed by the Company so as to extend to such distance seaward as may be agreed between the Company and the council or in default of agreement as may be settled by arbitration to be necessary to ensure that on the completion of the dock works sewage from that work is discharged out to sea not less effectively than it was being discharged from the existing sewer immediately before the passing of this Act :
- (4) If it is agreed between the Company and the council or in default of agreement settled by arbitration that—
 - (a) the discharge of sewage out to sea from the first sewer extension or from any extension thereof is materially less effective at any time during the construction or within five years after completion of the dock works or at any time during the extension enlargement or alteration of the dock works (under the powers contained in subsection (2) of section 4 (Power to make works) and the proviso to section 12 (Period for completion of works) of this Act) or within five years after such extension enlargement or alteration than the discharge of sewage out to sea

from the existing sewer immediately before the passing of this Act ; and

(b) the cause of such discharge being less effective is due in whole or in part to the construction of the dock works or any part thereof the extension enlargement or alteration of the dock works or the construction of the first sewer extension or any extension thereof ;

then the first sewer extension or any extension thereof shall be further extended seaward to such point as may be agreed between the Company and the council or in default of agreement as may be settled by arbitration to ensure that the sewage therefrom is discharged out to sea not less effectively than it was being so discharged immediately before the passing of this Act or in case of any extension of the sewer following any extension alteration or enlargement of the dock works than it was being so discharged immediately before such extension enlargement or alteration :

Provided that if the Company prove to the reasonable satisfaction of the council that the cause of the discharge of sewage out to sea from the first sewer extension or any extension thereof being less effective than the discharge of sewage out to sea from the existing sewer immediately before the passing of this Act is due only in part to the construction of the dock works or any part thereof or to the extension enlargement or alteration of the dock works or to the construction of the first sewer extension the council shall pay to the Company such proportion of the cost of the further extension of the sewer extension as is agreed between the Company and the council or in default of agreement settled by arbitration to be attributable to any other cause :

- (5) Not less than sixty days before commencing to construct any part of Work No. 6 or of the dock works or any building or other work which will be situate over or will affect the existing sewer or to execute any work to or in connection with the existing sewer the Company shall deliver to the council sufficient plans of such work or building and in such plans the Company shall make reasonable provision for the construction of the storage tanks in accordance with the reasonable requirements of and plans to be prepared by the council :
- (6) (a) At any time within thirty days after the receipt of any such plans the council by notice in writing to the Company may without prejudice to their rights under

subsections (2) to (5) of this section intimate their disapproval of—

(i) the situation or the length of Work No. 6 then to be constructed and the manner of constructing all or any part of Work No. 6 ;

(ii) the provision made for giving effect to such requirements and plans as may have been submitted to the Company by the council in regard to the construction of the storage tanks ;

or require the construction of such protective works (whether new additional or different works from those proposed by the said plans) as the council may think necessary ;

- (b) If the council shall not within the said period of thirty days give any such notice to the Company as is mentioned in this subsection they shall be deemed to have approved the plans as submitted to them :
- (7) The Company shall not construct any part of Work No. 6 or any protective works except in accordance with the plans as submitted to the council and approved or deemed to have been approved by the council or settled by arbitration in accordance with the provisions of this section or any works over the existing sewer until the protective works required in connection with those works have been completed to the reasonable satisfaction of the council :
- (8) Subject to the provisions of the proviso to subsection (4) of this section Work No. 6 and all protective works shall be constructed by and at the expense of the Company to the reasonable satisfaction of the council :
- (9) The council may if they think fit employ such inspectors as may be reasonably necessary to watch and inspect the construction of Work No. 6 and the protective works :
- (10) The Company shall not construct any works or buildings over the storage tanks and the said penstock chamber :
- (11) (a) Notwithstanding the stopping up under section 10 (Power to stop up road) of this Act of the part of Point Street referred to in that section the Company shall not seek to remove or interfere with the water main and apparatus connected therewith laid by the council in that street (hereinafter in this section referred to as

“ the existing main ”) until the council have carried out the following operations:—

(i) laid a 6 inch water main (hereinafter in this section referred to as “ the new main ”) in the situation shown by the red line on the plan signed in duplicate by Peter Frank Stott on behalf of the Company and by Alan Moody on behalf of the council one copy of which has been deposited with the Company and the other copy has been deposited at the Town Hall Milford Haven ;

(ii) removed the meter from the point marked “ A ” on the said plan to the point marked “ B ” on the said plan or to such other point on the existing main as may be reasonably determined by the council and connected the said meter to that main ; and

(iii) disconnected the existing main at the southern end of Point Street ;

(b) As from the date on which the said operations have been completed so much of the existing main as is laid in the said part of Point Street shall become the property of the Company ;

(c) The council shall have all necessary access to the existing main until the completion of the said operations ;

(d) If within a period of four months after being requested so to do in writing by the Company the council have not laid the new main as hereinbefore provided and have not disconnected the existing main the provisions of this subsection shall cease to have effect as from the expiration of that period :

Provided that the said request in writing shall not be given or sent by the Company to the council until the construction of the dock works has commenced :

(12) The storage tanks shall when completed vest in the council and shall for all purposes be deemed to form part of the existing sewer and to have been constructed by them in pursuance of the powers conferred by section 15 of the Public Health Act 1936 :

(13) The Company shall pay to the council—

(a) the reasonable expenses incurred by the council in taking any measures (including tests) reasonably required to ascertain the effect of the construction of Work No. 6 or any part thereof or of the dock works or any part of such works on the discharge out to sea of sewage from the existing sewer

or from that sewer as extended or proposed to be extended in accordance with the provisions of this section ;

(b) the reasonable cost of the employment of inspectors under subsection (9) of this section ; and

(c) the reasonable cost of carrying out the operations referred to in paragraph (a) of subsection (11) of this section :

- (14) If in the exercise by the Company of any of the powers of this Act any damage to the existing sewer or any water main or pipes or any property of the council or without the written authority of the council any interruption in the discharge of sewage out to sea or in the supply of water by the council shall be caused the Company shall bear and pay to the council the cost reasonably incurred in making good such damage or interruption and shall make full compensation to the council for any loss sustained by them by reason of any such damage or interruption and shall indemnify the council against all penalties claims demands proceedings costs damages and expenses which may be made or taken against the council or recovered from or incurred by the council by reason or in consequence of any such damage or interruption :
- (15) The Company shall be responsible for the repair or renewal of Work No. 6 or such part thereof as shall have been constructed and of any protective works which may be required during the construction or at any time within twelve months after the completion thereof :
- (16) Notwithstanding anything contained in section 9 (Power to dredge) of this Act no chalk gravel rock or other materials dredged or removed by the Company may be laid down or deposited below high-water mark of ordinary spring tides so as to interfere with the discharge of sewage from the seaward end of the existing sewer or of Work No. 6 or so much thereof as shall have been constructed (as the case may be) or the flow of such sewage out to sea and the Company shall on receipt of notice in writing by the council dredge or remove any such chalk gravel rock or other materials which causes or cause such interference as aforesaid :
- (17) Any difference which may arise between the Company and the council under this section shall be referred to arbitration.

18.—For the protection of the Wales Gas Board (in this section referred to as “the board”) the following provisions shall unless otherwise agreed in writing between the Company and the board apply and have effect:—

For protection
of Wales Gas
Board.

- (1) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not acquire otherwise than by agreement any apparatus:
- (2) If the Company in the exercise of the powers of this Act acquire any interest in any lands in under over or across which any apparatus is placed they shall not seek to remove that apparatus or to extinguish any right of the board to maintain repair renew or inspect that apparatus in under over or across those lands until adequate alternative apparatus shall have been constructed and be in operation to the reasonable satisfaction of the board:
- (3) If the Company for the purpose of exercising the powers of this Act require the removal of any apparatus and give to the board written notice of such requirement or if in consequence of the exercise of the powers of this Act the board shall require to remove any apparatus the Company shall afford to the board the necessary facilities and rights for the construction of adequate alternative apparatus in on or over other land of the Company and thereafter for the maintenance repair renewal and inspection of such apparatus:

Provided that if the Company are unable to afford facilities and rights as aforesaid the board shall on receipt of a written notice to that effect from the Company forthwith use their best endeavours to obtain the necessary facilities and rights over other land:

- (4) Where in consequence of this Act any part of any street road or footpath in which any apparatus is situate ceases to be part of a street road or footpath the board may exercise the same rights of access to such apparatus as they enjoyed immediately before the passing of this Act but nothing in this paragraph shall prejudice or affect any right of the Company or of the board to require removal of such apparatus under this section:
- (5) Nothing contained in section 11 (Temporary stoppage of roads and footpaths) of this Act or done thereunder shall take away prejudice or affect any rights or powers of the board in or in relation to any apparatus in any road or footpath affected by the exercise of any of the powers of that section and notwithstanding anything therein contained the board their officers engineers and workmen shall be at liberty at all times to execute and do all such works and things in upon

or under any such road or footpath as may be necessary for inspecting repairing maintaining renewing or removing any such apparatus:

- (6) The Company shall pay to the board the amount by which the costs charges and expenses reasonably incurred by the board in connection with any removal or alteration of any apparatus or the construction of any new apparatus that may be required in consequence of the exercise of the powers of this Act shall exceed the value of any apparatus removed in consequence of alternative apparatus being provided and shall also make compensation to the board for any damage caused to any apparatus in consequence of the exercise of the said powers:
- (7) Any difference which may arise between the Company and the board under this section shall be referred to and determined by arbitration:
- (8) In this section "apparatus" means any apparatus belonging to the board or for the maintenance of which they are responsible (not being apparatus in respect of which the relations between the Company and the board are regulated by the provisions of section 26 of the Public Utilities Street Works Act 1950) and the expression "adequate alternative apparatus" means alternative apparatus adequate to enable the board to fulfil their statutory functions in a manner not less efficient than previously.

Power to
acquire lands.

19.—(1) Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purpose of the new works or for the purpose of obtaining access thereto.

(2) The power of the Company for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October one thousand nine hundred and fifty-five.

Correction
of errors in
deposited plans
and book of
reference.

20.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plans or in the deposited book of reference the Company after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the county in which the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) Any such certificate shall be deposited with the clerk of the council of the county of Pembroke and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or of so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the standing orders of the Houses of Parliament or who has the custody of any such copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Company to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

21. At any time after serving a notice to treat in respect of any land which may be acquired compulsorily under this Act but not less than one month after giving to the owner and occupier of the land notice of their intention to exercise the powers of this section the Company may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845: Power to expedite entry.

Provided that the Company shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

22. Any person acting on behalf of the Company and duly authorised by the Secretary of the Company may at all reasonable times enter on any land which may be acquired compulsorily under this Act for the purpose of surveying or valuing the land: Power to enter for survey or valuation.

Provided that no land shall be entered under this section unless the Company not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice to the owner and occupier of the land in manner provided by section 285 of the Public Health Act 1936.

23. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account— Disregard of recent improvements and interests.

- (a) any improvement or alteration made or building erected after the fifth day of December one thousand nine hundred and fifty-four; or

(b) any interest in the land created after the said date ;
which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

Extinction of
private rights
of way.

24.—(1) All private rights of way over any land which may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Company compensation to be determined in case of dispute under and in accordance with the Lands Clauses Acts.

Additional
capital.

25.—(1) The Company may from time to time raise additional capital not exceeding in the whole four million five hundred thousand pounds (in this section referred to as “ the maximum amount ”) such additional capital being raised partly by the creation and issue of share capital and partly either by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock in accordance with the following provisions of this section.

(2) (a) The Company may from time to time raise additional share capital not exceeding in the whole the prescribed amount by the creation and issue of ordinary shares or stock or preference shares or stock or wholly or partly by one or more of those modes.

(b) It shall not be lawful for the Company to create and issue under the powers of this subsection any greater nominal amount of share capital than shall be sufficient to produce including any premiums and allowing for any discounts which may be obtained or allowed on the issue thereof the prescribed amount.

(3) (a) The Company may without obtaining a certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 raise for the purposes of the undertaking either by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or by both of those modes or partly by one and partly by the other any additional sum or sums of money not exceeding in the whole the prescribed amount.

(b) The powers conferred by this subsection shall be without prejudice to the right of the Company to reborrow from time to time any amounts which having been raised by borrowing on mortgage or by the creation and issue of redeemable debenture stock are thereafter paid off.

(4) In this section “ the prescribed amount ” means—

(a) in relation to the amount of share capital which the Company are by subsection (2) of this section authorised to

raise the sum of three million pounds or the maximum amount less the amount which at the time of the calculation the Company have raised by borrowing on mortgage or by the creation and issue of debenture stock under subsection (3) of this section (whichever is the less) ;

- (b) in relation to the amount which the Company are authorised to raise under the said subsection (3) a sum equal to the amount (including premiums and allowing for discounts) which at the time of the calculation has been raised by the Company by the creation and issue of share capital under subsection (2) of this section or the maximum amount less such last-mentioned amount (whichever is the less).

26. The additional share capital authorised by subsection (2) of section 25 (Additional capital) of this Act shall form part of the general share capital of the Company and save as is otherwise expressly provided by the terms of issue thereof the holders thereof respectively in proportion to the amount of their shares or stock shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents in all respects as holders of share capital of the Company of the same class or description.

Additional share capital to be part of general capital.

27. Any share capital created after the passing of this Act may subject to the terms of the resolution by which it was created be issued at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

Issue of new capital.

28. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 as amended in its application to the Company and of section 32 (Debenture stock) of the Act of 1953.

Debenture stock.

29. The powers conferred on the Company by section 33 (Company may incur temporary loans) of the Act of 1953 shall be extended so as to authorise them to have outstanding at any one time an aggregate amount of two hundred and fifty thousand pounds.

Increase of temporary borrowing powers.

30. All money to be raised by the Company on mortgage or by the creation and issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act:

Priority of mortgages and debenture stock over other debts.

Provided that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Appointment
of receiver.

31. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being borrowed by the Company.

Application
of money.

32.—(1) All money raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of share capital under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

(2) The Company may apply to any of the purposes of this Act to which capital is properly applicable any money which they have raised under the Milford Docks Acts 1874 to 1953.

Payment of
interest out of
capital.

33.—(1) Where under the authority of this Act the Company have raised money by the issue of preference share capital for the purpose of defraying the expense of the construction of the new works or any part of those works the Company may notwithstanding anything in the Milford Docks Acts 1874 to 1955 pay and charge to capital account interest on so much of that share capital as is for the time being paid up at such rate not exceeding (except with the consent of the Minister) five pounds per centum per annum as the directors may determine but subject however to the conditions hereinafter stated (that is to say):—

- (a) No such interest shall be paid otherwise than in respect of a period ending on or before the expiration of five years from the passing of this Act;
- (b) The payment of the interest shall not operate as a reduction of the amount paid up on the shares in respect of which it is paid;
- (c) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear;
- (d) The aggregate amount to be so paid for interest shall not exceed one-fifth of the preference capital for the time

being issued for the purpose aforesaid and paid up and the amount so paid shall not be deemed capital in respect of which the borrowing powers of the Company may be exercised ;

(e) Notice that the Company have power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares ;

(f) The annual accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

(2) The Company may charge to capital account the interest accruing during the period of five years from the passing of this Act or such less period as the directors may determine on all or any moneys borrowed under the powers of this Act or raised by the issue of debenture stock under the powers of this Act for the construction of the new works or any part of those works.

(3) Save as hereinbefore set forth no dividend or interest shall be paid out of capital but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

34.—(1) The Company shall have power and shall be deemed always to have had power to pay a commission to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for any share or loan capital to be offered for subscription by the Company or his procuring or agreeing to procure subscriptions whether absolute or conditional therefor if—

Power to pay underwriting commission and brokerage.

(a) the commission paid or agreed to be paid does not exceed three per cent. or if the Minister consents five per cent. of the price at which the capital is issued ; and

(b) the amount or rate per cent. of the commission paid or agreed to be paid is disclosed in every prospectus advertisement or other document published by the Company relating to the offer of the capital for subscription.

(2) The Company shall have power and be deemed always to have had power to pay such brokerage as is customary.

(3) The powers conferred on the Company by this section may be exercised by the directors.

Redeemable preference shares and stock and debenture stock.

35.—(1) In this section unless the context otherwise requires—

“ stock ” means preference stock and debenture stock ;

“ preference stock ” includes preference shares ;

“ issue ” includes reissue ;

“ redeemable stock ” means stock issued under the powers of this section so as to be redeemable ;

“ redeemed stock ” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act and any redeemed stock :

Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of a general meeting of the Company.

(3) Redeemable stock may be redeemed out of revenue or out of capital and such redemption may be effected by purchase as provided for in subsection (8) of this section or by paying off the stock or by issuing to the holder of the stock other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit :

Provided that—

- (i) no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that particular class which the Company are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued ;
- (ii) during such interval as aforesaid the amount raised by means of any stock so created or issued shall for the purpose of any enactment regulating the borrowing powers of the Company be deemed not to have been raised.

(4) The redemption of any preference stock issued so as to be redeemable shall not affect the validity of any mortgage or debenture stock if the grant or issue thereof by the Company was lawful in the circumstances existing at the date of grant or issue.

(5) Redeemable stock shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine:

Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the Company of such stock for subscription and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(6) Any discount allowed on the issue or any premium payable on the redemption of any redeemable stock may be written off out of revenue.

(7) For the purpose of any enactment relating to stamp duty the share capital of the undertaking shall be deemed not to have been increased by the issue or in the case of the creation of new stock under subsection (3) of this section by the creation and issue of share capital in pursuance of this section for the purpose of redeeming preference stock except to such extent (if any) as the aggregate nominal amount of any share capital issued or created and issued as aforesaid shall exceed the nominal amount of the preference stock to be redeemed so long as the preference stock to be redeemed is redeemed before the expiration of such an interval as is mentioned in the provisos to subsection (3) of this section.

(8) (a) The Company may from time to time set aside out of revenue after providing for the payment of interest on any mortgages debentures or debenture stock and for other fixed charges and obligations such sums as the Company consider proper for the purpose of redeeming any redeemable stock and which under the terms of the issue thereof is redeemable wholly or partly in cash and the Company may invest any sums so set apart and the income thereof in any securities (not being securities of the Company).

(b) All sums so set aside shall be applied in or towards the redemption of any redeemable stock for the redemption of which they may have been so set aside or may if the directors think fit be at any time applied in the purchase of any such redeemable stock at a price not exceeding the redemption price.

Power to give financial assistance to associated companies.

36.—(1) The Company may—

- (a) make temporary loans to an associated company (with or without security) ;
- (b) guarantee the debts of and the liabilities under any contract engagement or obligation entered into by an associated company ;
- (c) subsidise or otherwise financially assist or become surety or guarantor for an associated company ;
- (d) guarantee the payment of the principal or interest of and any premium payable on any debentures debenture stock bonds obligations or other securities and any dividend payable on and the return (with or without premium) of the capital paid up in respect of any shares or stock issued by an associated company.

(2) The Company may apply for the purposes of this section any money which they have raised or are authorised to raise or any of their funds except money carried to depreciation account or maintenance renewal or insurance funds in the accounts of the Company.

Minister to exclude certain transactions for purposes of orders under section 6 of Transport Charges &c. (Miscellaneous Provisions) Act 1954.

37. In making any order under section 6 of the Transport Charges &c. (Miscellaneous Provisions) Act 1954 the Minister shall disregard any investment made by the Company under section 35 (Power to invest in other companies) of the Act of 1953 any loan made or financial assistance given under the last foregoing section of this Act and any payment made under either section 43 (Power to grant pensions etc.) or section 44 (Superannuation scheme) of this Act to or on account of any person in respect of his office as a director of or his employment with an associated company and in estimating the financial position and future prospects of the undertaking under subsection (3) of the said section 6 no profits or losses which the Company may have made or be likely to make from any such investment under the said section 35 or from making any loan or giving financial assistance to an associated company under the last foregoing section of this Act and no such existing or contingent liabilities of the Company under either the said section 43 or the said section 44 of this Act as are hereinbefore in this section referred to shall be taken into account.

Modification of shareholders' rights.

38.—(1) Notwithstanding anything in any other enactment relating to the Company if at any time more than one class of share capital has been issued by the Company the rights attaching to any class (unless otherwise provided by the terms of issue of the shares of that class) may whether or not the Company is being wound up be varied with the consent in writing of the holders of three-fourths of the nominal value of the shares of

that class which are then in issue or with the sanction of a resolution passed by a majority of not less than three-fourths of the holders of such shares as being entitled so to do vote in person or by proxy at a separate general meeting of the holders of the shares of that class.

(2) The provisions of the Companies Clauses Consolidation Act 1845 and of the Milford Docks Acts 1874 to 1955 relating to the holding of general meetings of the Company shall apply *mutatis mutandis* to a general meeting of holders of any separate class of share capital as if it were a general meeting of the Company but the necessary quorum shall be two persons holding either in person or by proxy one-third of the issued shares of the class and any holder of the shares present in person or by proxy may demand a poll.

(3) Section 72 of the Companies Act 1948 shall apply in relation to the exercise by the Company of the powers of subsection (1) of this section as if the Company were a company to which that section applies.

39. All ordinary and preference stock and debenture stock of the Company shall be issued and be held in amounts of one pound or of a multiple of one pound and not otherwise and the Company shall not be under any obligation to register a transfer of any ordinary or preference stock or debenture stock which would make the holding (if any) of the transferor or transferee an amount other than one pound or a multiple of one pound of ordinary or preference stock or debenture stock. Minimum holdings of stock and debenture stock.

40.—(1) At every general meeting of the Company (whether ordinary or extraordinary) every holder of share capital entitled to attend and vote thereat shall on a show of hands be entitled to one vote and on a poll to one vote for each complete one pound of the nominal value of such capital. Voting rights.

(2) Except as otherwise expressly provided by the resolution creating the share capital no person shall be entitled to vote in respect of any share capital to which a preferential dividend shall be attached.

41.—(1) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 a director shall not be disqualified by his office from— Directors not to be disqualified from holding offices of profit or entering into contracts.

(a) holding any office or place of trust or profit (other than that of auditor) under the Company or any company promoted by the Company or in which the Company is interested; or

(b) being interested in any contract with the Company or with any company of which the Company is a shareholder on his own behalf or as a member of any other company or any corporation or partnership:

Provided that if a director or any company corporation or partnership of which he is a member be or become interested in any contract with the Company or with any company of which the Company is a shareholder (whether such interest shall arise before or after his appointment as a director) the nature of his interest or of the interest of such company corporation or partnership in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined if his or their interest then exists or in any other case at the first meeting of the directors after the acquisition of his or their interest or after his appointment.

For the purposes of the proviso to this subsection a general notice given to the directors by one of them to the effect that he is a member of any specified company corporation or partnership and is to be regarded as interested in any contract which may after the date of the notice be made with that company corporation or partnership shall be deemed to be a sufficient declaration of interest in relation to any contract so made.

(2) No director shall as a director vote in respect of any contract in which he is interested and if he does so vote his vote shall not be counted:

Provided that—

(a) this subsection shall not apply to—

(i) a contract with any other company in which he is interested only as a director or officer of such other company or as a holder of shares or other securities of such other company;

(ii) a contract by or on behalf of the Company to give to the directors or any of them security by way of indemnity;

(iii) the exercise of the powers conferred upon the directors by section 43 (Power to grant pensions etc.) and section 44 (Superannuation scheme) of this Act notwithstanding that the director is or may be interested therein;

(b) for the purpose of determining whether there is a quorum a director shall be treated as being present at a meeting notwithstanding that under the foregoing provisions of this subsection he cannot vote.

(3) A director who by reason of the foregoing provisions of this section is not disqualified from holding office shall not be liable to account to the Company for any profit realised as a result of holding any such office or place of trust or profit as is mentioned in paragraph (a) of subsection (1) of this section or of any such contract as is mentioned in paragraph (b) of the said subsection by reason of such director holding that office or the fiduciary relation thereby established.

42. Notwithstanding anything in the Companies Clauses Consolidation Act 1845—

Appointment
of directors
to hold other
offices.

- (a) The directors may from time to time appoint one or more of their number to the office of managing director or to any other executive office or position under the company (other than that of auditor) for such period and on such terms as the directors may determine and (subject to the provisions of any agreement entered into in any particular case) may revoke such appointment ;
- (b) (i) The appointment of a director to the office of managing director shall (without prejudice to any claim he may have for damages for breach of any contract of service between him and the Company) ipso facto determine if he cease from any cause to be a director ;
- (ii) The appointment of a director to any executive office or position under the Company (other than that of managing director) shall not (subject to the provisions of any agreement entered into in any particular case) determine by reason of the fact that such director ceases to be a director of the Company ;
- (c) A director so appointed to the office of managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors ;
- (d) A director so appointed to the office of managing director or other executive office or position under the Company shall receive such remuneration (whether by way of salary commission or participation in profits or otherwise) as the directors may determine and such remuneration shall be either in addition to or in lieu of his remuneration (if any) as a director ;
- (e) The directors may entrust to and confer upon a director so appointed to the office of managing director or other executive office or position under the Company any of the powers exercisable by the directors (other than the powers to borrow money or to make calls) upon such terms and conditions and with such restrictions as the directors think fit and either collaterally with or to the exclusion of the powers conferred upon the directors and may from time to time (subject to the terms of any agreement entered into in any particular case) revoke withdraw alter or vary all or any of such powers.

Power to grant pensions etc.

43.—(1) The directors may grant such gratuities pensions and superannuation allowances or make such other payments as they think fit to any employee or where in any particular case no adequate provision is in their opinion otherwise made to the widow or family or any dependant of an employee.

(2) In the event of no superannuation scheme being established under the next ensuing section of this Act the directors may make such payments as they think fit to any superannuation fund otherwise formed for the benefit of the employees.

(3) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependant as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made.

(4) The directors may subscribe or make donations to any fund raised in case of national emergency and to infirmaries hospitals convalescent homes and other institutions and objects and to the benevolent and sick funds of the employees.

(5) The directors may apply the revenues of the Company for the purposes of this section.

(6) (a) In this and the next succeeding section “employee” includes—

(i) a director appointed under the last foregoing section of this Act to the office of managing director or to some other executive office or position as provided in that section or a director of an associated company who holds or has held any such office or position in that company; and

(ii) a person who was formerly in the employment of the Company or who is or was in the employment of an associated company.

(b) Any payment or allowance made to or benefit received by a director under either this or the next succeeding section of this Act may be retained by the director and his right so to do shall not be affected by his having been appointed or continuing in office as a director or receiving remuneration as such after the date on which the payment allowance or benefit becomes payable.

Super-annuation scheme.

44.—(1) The directors may establish and carry into effect and from time to time modify alter or rescind a scheme or schemes for the provision of superannuation allowances for employees or for any class or classes of employees and may by any such scheme provide for the making of contributions by the Company and by the employees to the superannuation fund formed under

any such scheme and for the investment of moneys forming part of such fund and the accumulation of interest or dividends on such investments by way of compound interest:

Provided that no modification alteration or rescission of any such scheme shall place any person who at the date of such modification alteration or rescission is a contributor to the fund or entitled under such scheme to a superannuation allowance in a worse position than he would have been if such modification alteration or rescission had not been made.

(2) No superannuation fund established under this section shall come into operation until it has been registered under the Superannuation and other Trust Funds (Validation) Act 1927.

(3) The directors may apply the revenues of the Company for the purposes of this section.

45. Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties or failing agreement appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the others of them) and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to the reference and determination. Arbitration.

46.—(1) The amendments specified in the second column of Part I of the schedule to this Act shall be made in the provisions of the Milford Docks Acts 1874 to 1953 specified in the first column of the said Part. Amendment and repeal of Milford Docks Acts 1874 to 1953.

(2) The provisions of the Milford Docks Acts 1874 to 1953 specified in the first column of Part II of the said schedule are hereby repealed to the extent specified in the second column of the said Part.

47. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those Commissioners on behalf of Her Majesty first had and obtained for that purpose. Crown rights.

48. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

Saving for
powers of
Treasury.

49. It shall not be lawful to exercise the powers of borrowing or raising capital conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Costs of Act.

50. The costs charges and expenses preliminary to and of and incidental to the applying for and the preparing obtaining and passing of this Act shall be paid by the Company.

SCHEDULE

PART I

AMENDMENTS OF THE MILFORD DOCKS ACTS 1874 TO 1953

Provision amended	Amendment
Milford Docks Act 1888 Section 11 (Repeal of section 39 of the Act of 1874).	For the words "within the wet dock or at or upon or otherwise using any wharf quay or other work of the like nature constructed under the provisions of the recited Acts and this Act or any of them" there shall be substituted the words "at or upon or otherwise using any works of the Company forming part of the undertaking (as defined in the Milford Docks Act 1955)".
Milford Docks Act 1953 Section 4 (Interpretation).	For the words "'the limits of the docks' means the limits as defined in section 5 (As to limits of the docks) of this Act" there shall be substituted the words "'the limits of the docks' means the limits as defined in section 5 (As to limits of the docks) of this Act as amended by the Milford Docks Act 1955".
Section 5 (As to limits of the docks).	For the words "the Milford Docks Acts 1874 to 1953" there shall be substituted the words "the Milford Docks Acts 1874 to 1955".
Section 8 (Company to exhibit lights).	After the words "for the purposes of the undertaking" there shall be inserted the words "(including any works constructed under the Milford Docks Act 1955)".
Section 9 (Provisions against danger to navigation).	After the words "high-water mark of ordinary spring tides" there shall be inserted the words "and whether constructed before or after the passing of this Act".
Section 19 (Byelaws).	For the words "the Milford Docks Acts 1874 to 1953" there shall be substituted the words "the Milford Docks Acts 1874 to 1955".
Section 33 (Company may incur temporary loans).	For the words "fifty thousand" there shall be substituted the words "two hundred and fifty thousand".
Section 59 (Inquiries by Minister).	For the words "under this Act" there shall be substituted the words "under the Milford Docks Acts 1874 to 1955".

PART II

PROVISIONS OF THE MILFORD DOCKS ACTS 1874 TO 1953 REPEALED

Acts	Extent of repeal
Milford Docks Act 1874 ...	Section 26 (Power to dredge and buoy portion of Milford Haven). The words "when and so soon as any such certificate as aforesaid shall have been obtained" in section 44 (Rates for the use of wharves cranes &c. and for warehousing goods).
Milford Docks Act 1953 ...	Section 31 (Redeemable debenture stock). Section 39 (Voting at general meetings). Section 48 (Directors not to be disqualified from entering into contracts).

Table of Statutes referred to in this Act

Short title	Session and chapter
Companies Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 16.
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 20.
Harbours Docks and Piers Clauses Act 1847 ...	10 & 11 Vict. c. 27.
Lands Clauses Consolidation Acts Amendment Act 1860.	23 & 24 Vict. c. 106.
Companies Clauses Act 1863 ...	26 & 27 Vict. c. 118.
Railway Companies Act 1867 ...	30 & 31 Vict. c. 127.
Telegraph Act 1869 ...	32 & 33 Vict. c. 73.
Milford Docks Act 1874 ...	37 & 38 Vict. c. lxxvii.
Telegraph Act 1878 ...	41 & 42 Vict. c. 76.
Milford Docks Act 1888 ...	51 & 52 Vict. c. lxxvii.
Superannuation and other Trust Funds (Validation) Act 1927.	17 & 18 Geo. 5 c. 41.
Public Health Act 1936 ...	26 Geo. 5 & 1 Edw. 8 c. 49.
Borrowing (Control and Guarantees) Act 1946...	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Companies Act 1948 ...	11 & 12 Geo. 6 c. 38.
Arbitration Act 1950 ...	14 Geo. 6 c. 27.
Milford Docks Act 1953 ...	1 & 2 Eliz. 2 c. x.
Transport Charges &c. (Miscellaneous Provisions) Act 1954.	2 & 3 Eliz. 2 c. 64.

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Milford Docks Act, 1955

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